PATRICK DUBE

Versus

THE STATE

And

S. NDLOVU (N.O)

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 17 JULY AND 21 AUGUST 2025

Review Application

T. Tavengwa, for the applicant
S. Phiri, for the 1st respondent
No appearance for the 2nd respondent

KABASA J: This is an application for review of the 2nd respondent's decision wherein the court dismissed an application for discharge at the close of the state case.

The applicant seeks the following order:-

"1. The decision of the 2nd respondent of dismissing the applicant's application for discharge at the close of the state case be and is hereby set aside.

2. Applicant is discharged and acquitted at the close of state case.

3. There be no order as to costs."

The matter was initially heard in motion court where the application was dismissed. The decision was appealed against and the appeal was allowed, the judgment was set aside and the matter remitted for a determination before a different Judge after the parties have been offered an opportunity to make submissions.

Following this order the matter was again enrolled on the unopposed roll, the reason being that the respondent was barred for failing to comply with rr 232 and 233 of the High Court Rules, 1971. TAKUVA J before whom the matter was heard referred to the Supreme

Court order which specifically ordered that the matter be heard with the parties allowed to make submissions. The learned Judge proceeded to remove the matter from the roll.

This background explains why the matter has taken long to finally be heard with both the applicant's counsel and state counsel making submissions, as per the Supreme Court order.

The applicant seeks a review of the 2nd respondent's decision on the following ground:-

> "The irrationality or outrageousness of the 2nd respondent's decision of dismissing applicant's application for discharge at close of state case when the evidence led in court clearly shows that the state failed to prove a *prima facie* case against applicant. Put differently 2nd respondent dismally failed to objectively consider the evidence which clearly exonerated applicant from any wrong doing."

The applicant appeared before the 2nd respondent charged with theft of trust property, it being alleged that from the period extending from November 2017 to December 2018 at Plot 4 Richardson Umguza, the applicant failed to abide by an agreement to keep 64 herd of cattle on behalf of Sikhanyiso Dube and to hand over same upon request.

Evidence was led from five witnesses. The complainant testified to the effect that she and her husband had moved to the farm which was state offered land, from Gwanda. They had 68 cattle but had set aside 12 which were to be sold in order to raise money for her late husband's medical expenses. 48 cattle were tagged and there were 12 calves. Her husband subsequently died and 2 beasts were slaughtered at the funeral. One had died and she was aware it had been sick. She had also received a message that a calf had drowned which meant a total of 4 cattle had to be subtracted from the original herd. She therefore expected to register 64 cattle with the Master. She asked the applicant in whose custody the cattle were and he advised her there were 17. She raised a complaint before a judge of the High Court and an investigation was ordered by the High Court leading to the recovery of 10 cattle. She had not authorised the applicant to sell any of the cattle.

The complainant was not sure how many cattle the applicant owned but the whole family had moved to this farm. She however knew that applicant's cattle were less than ten. She was also not sure of the number of cattle that were moved from Gwanda but the applicant kept the stock register for her cattle.

The other four witnesses were 3 prison officers who bought cattle from the applicant and the Investigating Officer who recovered 10 cattle from one of the prison officers. The first 2 prison officers bought 3 cattle between them but had slaughtered them so they were not recovered. They could not recall observing any brand mark. However the third prison officer observed that 4 of the 12 cattle he bought had ear tags and the complainant testified to the effect that they had tagged 48 cattle with ear tags.

It was the Investigating Officer's evidence that applicant had a stock register in which births were recorded but beasts sold were not recorded. The register showed that applicant had 4 cattle. Of the 12 beasts sold to Chibagidi (the prison officer) only 7 were cleared but the applicant hid the Form 397 and did not produce it to the Investigating Officer.

It was from this evidence that the trial Magistrate found that of the cattle sold by the applicant, some had ear tags described by the complainant in her testimony. The cattle sold were not entered in the stock register but the rest were. The applicant therefore tried to hide these transactions. The Magistrate then concluded thus:-

> "At this point the state is not required to prove beyond reasonable doubt but is required to establish a *prima facie* case. The evidence adduced by the state meets that requirement and accused is to be placed on his defence."

The application before me seeks this court to interfere with unterminated criminal proceedings. The state did not oppose the application agreeing with counsel for the applicant that the state did not prove a *prima facie* case at the close of the state case.

In *Attorney-General* v *Makamba* 2003 (2) ZLR 54 (S) MALABA JA (as he then was) had this to say:-

> "The general rule is that a superior court should interfere in uncompleted proceedings only in exceptional circumstances of proven gross irregularity vitiating the proceedings and giving rise to a miscarriage of justice which cannot be redressed by any other means or where the interlocutory decision is clearly wrong as to seriously prejudice the rights of the litigant." (See also Gumbura & 6 Ors v *Mapfumo N.O and Anor* S 10-21)

Counsel for the applicant has argued that putting the applicant on his defence is tantamount to asking him to bolster the state's case. There is nothing for him to answer to as he cannot be accused of stealing non-existent property.

The fact that the complainant could not give details of brand marks and the exact number of cattle bought from cattle sales, from villagers and the cattle which were moved from Gwanda does not take away the fact that it is accepted the family cattle were in applicant's custody. He was the one responsible for all the cattle including the complainant's. He sold cattle which he did not keep a record of.

He denied selling cattle to the prison officer who bought 12 cattle from him yet the register he had showed that he only had 4 cattle. The complainant did not authorise him to sell her cattle for whatever reason.

How then can it be argued that he cannot be said to have failed to account for non-existent cattle?

In *S* v *Hlambelo* HB 251-20 DUBE-BANDA J had this to say with regards to what the state has to prove at the close of the state case:-

> "At this stage of the proceedings the issue is certainly not whether the state has proved its case beyond reasonable doubt as to justify a conviction….. At this stage of the proceedings, the simple question is, on the record is there evidence against the accused person which requires a reply from him."
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> The 2nd respondent identified that which requires a reply from the applicant. The failure to record cattle sold and the cattle sold to the prison officer which had ear tags described by the complainant. The trial court can therefore not be criticised for reproducing the evidence of the witnesses for it was from that evidence that it identified what the applicant was to be called to reply to.

In *A-G v Bennet* 2011(1) ZLR 396(S) the court spelt out the grounds upon which an application for discharge at the close of the state case can be made. These are where there is no evidence to prove an essential element of the offence (S *v Bvuma & Anor* 1987(2) ZLR 96 (S), where there is no evidence on which a reasonable court, acting carefully, might properly convict (A-*G v Mzizi* 1991 (2) ZLR 321 (S) and where the evidence adduced is so manifestly unreliable that no reasonable court could safely act on it (*A-G v Tarwireyi* 1997 (1) ZLR 575 (S)

Counsel for the applicant's contention is that there is no evidence as the applicant can not be said to have failed to account for non-existent cattle.

> "The words no evidence have been interpreted to mean no evidence upon which a reasonable person might convict. See *S* v *Khanyapa* 1978 (1) SA 804 (A)

Where the court considers that there is no evidence that the accused committed the offence it has no discretion but to discharge him (*S* v K*achipare* 1998 (2) ZLR 271 (S), *S* v *Tsvangirai* 2003 (2) ZLR 88)"

As already stated, it cannot be said there is no evidence requiring a reply from the applicant. The ear tagged cattle bought by the prison officer, the failure to record cattle sold and the fact that he did not produce the documentation referred to as Form 397 which the investigating officer said the applicant hid, amounts to evidence requiring a reply.

Counsel stated that the Magistrate who dealt with the matter has since left the bench and the prosecutor has also left. These are not considerations that must exercise my mind in deciding whether or not to interfere with unterminated proceedings.

I do not see what miscarriage of justice there possibly could be which cannot be addressed by any other means. The applicant is not obliged to bolster the state case as he can choose to remain silent. Should a conviction ensue he has the right to appeal.

This court should interfere with unterminated proceedings where failure to do so, would lead to an injustice. For the reasons already articulated, the complainant's cattle were left with the applicant and that is not disputed. The issue is whether he accounted for them when the complainant called on him to do so.

The state's concession was in my view, not properly made and this court is of the considered view that the court *a quo's* decision to dismiss the application for discharge at the close of the state case was not irrational or outrageous.

There is therefore no justification in interfering with the unterminated proceedings.

That said, the application for review be and is hereby dismissed.

Mutuso, Taruvinga & Mhiribidi Attorneys, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners